

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 26, 2018

Honorable Mark S. Arnold
Judge of the Superior Court
County of Los Angeles
825 Maple Avenue
Torrance, CA 90503

Re: Murillo, Jose Antonio
CDC No.: F75729
Case No.: YA064878-01
Date of Sentence: 04/19/2007

Dear Honorable Mark S. Arnold:

The purpose of this letter is to provide the court with authority to resentence Jose Antonio Murillo pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Murillo was sentenced in 2007, and was convicted of section 245, subdivision (a)(2), Assault with firearm on person. The trial court sentenced inmate Murillo on 04/19/2007. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Murillo's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Murillo's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

EPD 4-25-03

F75729
NKPRC

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

CONFORMED COPY
OF ORIGINAL FILED

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES, SOUTHWEST DISTRICT		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JOSE ANTONIO MURILLO AKA: DAVID MARRILO CII NO: A25276168 BOOKING NO: 9067725	DOB: 07-16-88 ☐ NOT PRESENT ☒ AMENDED ABSTRACT	YA064878-01 -A -B -C -D
DATE OF HEARING 04-19-07	DEPT. NO. SW G	JUDGE M. ARNOLD
CLERK M. BOUCHELION	REPORTER L. MILIVOJEVIC	PROBATION NO. OR PROBATION OFFICER X-1952574 ☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE D. WILLIAMS, D.A.	COUNSEL FOR DEFENDANT E. DELAMORA, PVT. ☐ APPTD.	

Los Angeles Superior Court
JUN 26 2007
John A. Clarke, Executive Officer/Clerk
Ry Garv Hoo, Deputy

1. Defendant was convicted of the commission of the following felonies:
☐ Additional counts are listed on attachment
____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (page 2 of 2)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
11	PC	245(a)(2)	Assault with firearm on person	2006	04-19-07			X	U							4	0
12	PC	245(a)(2)	Assault with firearm on person	2006	04-19-07			X	M		X					1	0
13	PC	245(a)(2)	Assault with firearm on person	2006	04-19-07			X	M		X					1	0

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	TOTAL
11	PC 12022.7(a)	3	186.22(b)(1)(c)	10	PC 12022.5(a)(1)	10	23 0
12	PC 12022.5(a)(1)	1 yr 4 mos					1 4
13	PC 12022.5(a)(1)	1 yr 4 mos					1 4

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	ENHANCEMENT	TIME IMPOSED OR 'S' FOR STAYED	TOTAL

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(l) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 31 8

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: JOSE ANTONIO MURILLO			
YA064878-01	-A	-B	-C
			-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
 Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

b. Restitution per PC 1202.4(f):

Case A: \$14,765.64 ☐ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
 Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below. ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$20.00 per PC 1465.8.

10. TESTING a. ☐ Compliance with PC 296 verified b. ☐ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

-Pursuant to PC section 296, the defendant is ordered to provide buccal swab samples, a right thumb print, a full palm print impression of each hand, and any blood specimens or other biological samples as required by this section for law enforcement identification.
 -Pursuant to PC section 186.30, the defendant is ordered to register as a street gang participant with the local law enforcement agency within 10 days of release from custody.
 -Stipulated restitution to: Victims of crime State Board of Control.
 said restitution is joint and several with co-defendant: Jonathan Gamez

12. IMMEDIATE SENTENCE:

14. CREDIT FOR TIME SERVED

☐ Probation to prepare and submit Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: HISPANIC

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
 b. ☐ at resentencing per decision on appeal.
 c. ☐ after revocation of probation.
 d. ☐ at resentencing per recall of commitment. (PC1170(d).)
 e. ☐ other (specify):

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	388	338	50 ☐ 4019 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
04-19-07		DMH	CDCR
			CRG

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE G. HOO	DATE 06-26-07
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